

(3) Where a further test undertaken in accordance with sub-paragraph (1)(a) generates a negative result, this paragraph applies to P from the time P is notified of that negative result as if the workforce test undertaken by P in accordance with regulation 7 had generated a negative result (and accordingly, from that time, P is no longer required to self-isolate).

(4) Paragraph 11(4) and (5) (notification of test results) of Schedule 8 applies in relation to a further test undertaken pursuant to sub-paragraph (1)(a) as it applies to a test provider in relation to a test provided under Schedule 8.

(5) Where a workforce test undertaken by P in accordance with regulation 7 generates an inconclusive result, P must as soon as reasonably practicable undertake a further workforce test and that further workforce test is to be treated as a replacement workforce test within the meaning of regulation 7(4).

Duties on employers

4.—(1) An employer with more than 50 employees who is the employer of any person who is required to undertake workforce tests or has responsibility for any agency worker who is required to undertake workforce tests, must take reasonable steps to facilitate the taking of those tests by that person or agency worker in accordance with these Regulations.

(2) In the discharge of the duty under sub-paragraph (1), an employer must have regard to any guidance issued by the Secretary of State for the purposes of this paragraph.

(3) In sub-paragraph (1) an employer has responsibility for an agency worker if—

- (a) the agency worker is supplied or to be supplied by a person (an “agent”) to the employer under a contract or other arrangements made between the agent and the employer; and
- (b) the agency worker is not—
 - (i) a worker because of the absence of a worker’s contract between the agency worker and the agent or the employer, or
 - (ii) a party to a contract under which the agency worker undertakes to do the work for another party to a contract whose status is, by virtue of the contract, that of a client or customer of any profession or business undertaking carried on by the agency worker.

SCHEDULE 10

Regulation 9(16)

Optional testing after arrival in England

Application of this Schedule

1. A person who is required by regulation 9(2) to self-isolate (“P”) may undertake an appropriate test in the circumstances described in paragraph 4 for the purposes of determining whether they may cease self-isolating (as provided for in regulation 9(16)).

Appropriate tests

2.—(1) A test is an “appropriate test” where—

- (a) it is a test for the detection of coronavirus;
- (b) the manufacturer of any device used for the purposes of the test states that the device has—
 - (i) a sensitivity greater than 95% (with 95% two-sided confidence interval entirely above 90%),
 - (ii) a specificity greater than 95% (with 95% two-sided confidence interval entirely above 90%),